

# SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

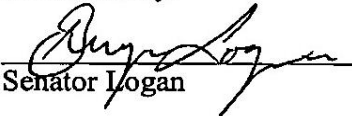
No. 1

☐ COMMITTEE AMENDMENT

\_\_\_\_\_  
(Date)

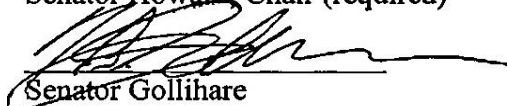
I move to amend House Bill No. 4425 by substituting the attached floor substitute (Request # 4015) for the title, enacting clause, and entire body of the measure.

Submitted by:

  
Senator Logan

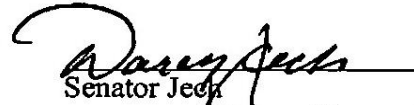
I hereby grant permission for the floor substitute to be adopted.

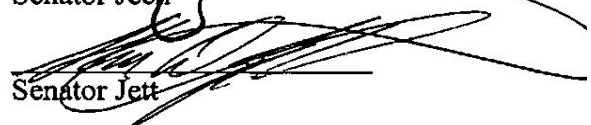
  
Senator Howard, Chair (required)

  
Senator Gollihare

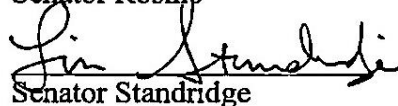
\_\_\_\_\_  
Senator Boren

\_\_\_\_\_  
Senator Brooks

  
Senator Jech

  
Senator Jett

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Senator Rosino

  
Senator Standridge

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Senator Paxton, President Pro Tempore

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Senator Daniels, Majority Floor Leader

Note: Judiciary Committee majority requires five (5) members' signatures.

Logan-TEK-FS-HB4425  
5/5/2026 12:53 PM

(Floor Amendments Only)

Date and Time Filed: 5-5-26 1:52pm jd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE  
FOR ENGROSSED

HOUSE BILL NO. 4425

By: Hilbert of the House

and

Logan of the Senate

FLOOR SUBSTITUTE

[ torts - Good Faith Reporting for Child Protection Act -  
immunity - presumption of good faith - applicability date  
- noncodification - effective date ]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be  
codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Good Faith  
Reporting for Child Protection Act".

SECTION 2. AMENDATORY 76 O.S. 2021, Section 31, is  
amended to read as follows:

Section 31. A. For purposes of this section:

1. "Charitable organization" means any benevolent,  
philanthropic, patriotic, eleemosynary, educational, social, civic,

1 recreational, religious group or association or any other person  
2 performing or purporting to perform acts beneficial to the public;

3 2. "Employee" means a person who performs ministerial,  
4 supervisory, or staff services for a charitable organization and is  
5 subject to the organization's governance, direction, or authority in  
6 connection with such services, regardless of tax classification.  
7 Employee shall not include an independent contractor or third-party  
8 service provider who retains control over the manner and means of  
9 performing services;

10 3. "Not-for-profit corporation" means a corporation formed for  
11 a purpose not involving pecuniary gain to its shareholders or  
12 members, paying no dividends or other pecuniary remuneration,  
13 directly or indirectly, to its shareholders or members as such, and  
14 having no capital stock; and

15 4. "Volunteer" means a person who enters into a service or  
16 undertaking of the person's free will without compensation or  
17 expectation of compensation in money or other thing of value in  
18 order to provide a service, care, assistance, advice, or other  
19 benefit; provided, being legally entitled to receive compensation  
20 for the service or undertaking performed shall not preclude a person  
21 from being considered a volunteer.

22 B. Any volunteer shall be immune from liability in a civil  
23 action on the basis of any act or omission of the volunteer  
24 resulting in damage or injury if:

1        1. The volunteer was acting in good faith and within the scope  
2 of the volunteer's official functions and duties for a charitable  
3 organization or not-for-profit corporation; and

4        2. The damage or injury was not caused by gross negligence or  
5 willful and wanton misconduct by the volunteer.

6        ~~B.~~ C. In any civil action against a charitable organization or  
7 not-for-profit corporation for damages based upon the conduct of a  
8 volunteer, the doctrine of respondeat superior shall apply,  
9 notwithstanding the immunity granted to the volunteer in subsection  
10 ~~A~~ B of this section.

11        ~~C.~~ D. A charitable organization or an employee or volunteer of  
12 such organization who promptly reports in good faith an incident of  
13 sexually inappropriate conduct with a minor by another employee or  
14 volunteer of such organization and who makes the report in  
15 compliance with a reporting policy adopted by the charitable  
16 organization that shall include, but not be limited to, defining  
17 actions or behaviors constituting sexually inappropriate conduct  
18 with a minor, shall be immune from a cause of action for damages  
19 arising out of the reporting itself to law enforcement or the  
20 Department of Human Services, or that was in relation to the  
21 person's current or prospective employment or volunteering.  
22 Provided, however, such immunity shall not apply if the  
23 organization, employee, or volunteer participated or was involved in  
24 the incident or any subsequent cover-up of the incident.

1        E. Any person who, in good faith and without compensation, or  
2 expectation of compensation, donates or loans emergency service  
3 equipment to a volunteer shall not be liable for damages resulting  
4 from the use of such equipment by the volunteer, except when the  
5 donor of the equipment knew or should have known that the equipment  
6 was dangerous or faulty in a way which could result in bodily  
7 injury, death, or damage to property.

8        ~~D. Definitions.~~

9        ~~1. For the purposes of this section, the term "volunteer" means~~  
10 ~~a person who enters into a service or undertaking of the person's~~  
11 ~~free will without compensation or expectation of compensation in~~  
12 ~~money or other thing of value in order to provide a service, care,~~  
13 ~~assistance, advice, or other benefit; provided, being legally~~  
14 ~~entitled to receive compensation for the service or undertaking~~  
15 ~~performed shall not preclude a person from being considered a~~  
16 ~~volunteer.~~

17        ~~2. For the purposes of this section, the term "charitable~~  
18 ~~organization" means any benevolent, philanthropic, patriotic,~~  
19 ~~eleemosynary, educational, social, civic, recreational, religious~~  
20 ~~group or association or any other person performing or purporting to~~  
21 ~~perform acts beneficial to the public.~~

22        ~~3. For the purposes of this section, the term "not-for-profit~~  
23 ~~corporation" means a corporation formed for a purpose not involving~~  
24 ~~pecuniary gain to its shareholders or members, paying no dividends~~

1 ~~or other pecuniary remuneration, directly or indirectly, to its~~  
2 ~~shareholders or members as such, and having no capital stock.~~

3 ~~E.~~ F. The provisions of this section shall not affect the  
4 liability that any person may have which arises from the operation  
5 of a motor vehicle, watercraft, or aircraft in rendering the  
6 service, care, assistance, advice, or other benefit as a volunteer.  
7 Provided, however, the liability of any person with a current motor  
8 vehicle insurance policy at the required minimum limits who  
9 volunteers to provide transportation shall not exceed the limits of  
10 such insurance policy, except for gross negligence or willful or  
11 wanton conduct committed in providing such transportation. In no  
12 event shall the limitation on liability provided under this  
13 subsection apply to a person who does not possess a current motor  
14 vehicle policy when providing transportation.

15 ~~F.~~ G. The immunity from civil liability provided for by  
16 subsection B of this section shall extend only to the actions taken  
17 by a person rendering the service, care, assistance, advice, or  
18 other benefit as a volunteer, where such actions are agreed upon in  
19 advance by all involved persons to be provided on a volunteer basis.  
20 This section shall not be construed to confer any immunity to any  
21 person for actions taken by the volunteer prior to or after the  
22 rendering of the service, care, assistance, advice, or other benefit  
23 as a volunteer.

1       G. H. This section shall apply to all civil actions filed after  
2 ~~August 25, 1995~~ November 1, 2026.

3       SECTION 3. This act shall become effective November 1, 2026.  
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5       60-2-4015           TEK           5/5/2026 2:19:40 PM  
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